



PEACE IS GLORIOUS AND ADVANTAGEOUS

GROTIUS'S *ON THE LAW OF
WAR AND PEACE* (1625)

IN CONTEXT

FOCUS

International law

BEFORE

54–51 BCE Cicero's *De Republica* introduces ideas of natural law and natural right.

AFTER

1648 The Peace of Westphalia is signed, recognizing the sovereignty and equality of states and ending Europe's wars of religion.

1758 *The Law of Nations* by Swiss diplomat Emmerich de Vattel is published. The book builds on Grotius's ideas to further define international law and make it more accessible.

1863 The Lieber Code is the first to specify how soldiers should behave during conflict.

1864 The Geneva Convention for the Amelioration of the Condition of the Wounded in Armies in the Field is ratified.

Dutch philosopher and jurist Hugo Grotius (1583–1645) has been credited as the “father of international law” due to his influential 1625 work, *De Jure Belli ac Pacis* (*On the Law of War and Peace*). Grotius was a proponent of the theory of natural law, which he saw as unalterable and universal. He believed that natural law derived from natural rights and human reason and therefore could not be changed by God or organized religion.

Grotius applied these ideas to international relations, arguing that legal principles exist naturally and should underpin all dealings between nations. He believed that nations should have equal rights and sovereign status and that states should be subject to the same laws as individuals. In his view, grievances between states should be resolved diplomatically, and war should be waged only if no other solution can be found. Grotius also developed a system of principles to govern international relations in times of war and peace.



Hugo Grotius's views were colored by the bloodshed taking place during his lifetime, especially the Eighty Years' War and Thirty Years' War.

War had previously been seen as a legitimate political tactic, as popularized by Florentine politician Niccolò Machiavelli (1469–1527). Grotius argued that war is only acceptable if it is just—for instance, if a country faces an imminent threat and uses force that is proportionate to the threat. His insistence that diplomatic efforts should be made to avoid war laid the foundation for our modern notion of international law. ■

See also: The Peace of Westphalia 94–95 ■ Vattel's *The Law of Nations* 108
■ The Geneva Conventions 152–155 ■ The Hague Conventions 174–177